

CV-26-002843 HECHT FAMILY THREE LLC vs VOP 21 LLC – Plaintiff's Motion to Strike Responses of Defendant VOP 2.1, LLC – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: A motion to strike is not the appropriate mechanism herein as motions to strike are only available to attack pleadings such as an Answer, Complaint, or Cross Complaint. Civ. Proc. Code §§ 435, 436. The filing at issue is a declaration. The Court does, however, GRANT Plaintiff's Request for Judicial Notice and notes Defendant's suspension status per Plaintiff's Exhibit A. A corporation suspended for failure to file a required statement under the Corporations Code is, like a corporation suspended for failure to pay taxes under the Revenue and Taxation Code, disabled from participating in any litigation activities. *Palm Valley Homeowners Ass'n, Inc. v. Design MTC* (2000) 85 Cal.App.4th 553, 559; Corp. Code § 2205, Revenue and Taxation Code § 23301. Defendant is hereby admonished to refrain from submitting filings to the court regarding this action while in suspended status. Defendant shall submit a Proposed Order within five court days that complies with this ruling.

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